

Paschimanchal Vidyut Vitran Nigam Ltd. v. Rajeev Kumar

High Court of Judicature at Allahabad · Single Judge · 23 May 2019 · Writ-C No. 17618 of 2019 · WRIT - C No. - 17618 of 2019 · Stay of PLA award; notice issued; merits not considered

HEADNOTE

On a distribution licensee's writ against a Permanent Lok Adalat award in a theft-of-electricity assessment dispute, the Allahabad High Court issued notice, stayed the award, and listed the matter, without deciding whether the Lok Adalat lacked jurisdiction because statutory remedies under the Electricity Act, 2003 and the Electricity Supply Code, 2005 were available.

FACTUAL SUMMARY

Paschimanchal Vidyut Vitran Nigam Limited challenged the 18 May 2018 award of the Permanent Lok Adalat, Moradabad, in a theft-of-electricity assessment dispute. The distribution company said the consumer, Rajeev Kumar, had gone to the Lok Adalat despite statutory remedies under the Electricity Act, 2003 and the Electricity Supply Code, 2005, and that the award was without jurisdiction. Siddharth J. issued notice and stayed the award; later listings by Yashwant Varma J. continued the stay.

HOLDING-UNITS

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interlocutory stay of Permanent Lok Adalat theft-assessment award

HOLDING

The High Court issued notice on the distribution licensee's challenge to a Permanent Lok Adalat award in a theft-of-electricity assessment dispute, stayed the award pending listing, and did not decide whether the Lok Adalat lacked jurisdiction because statutory remedies under the Electricity Act, 2003 and the Electricity Supply Code, 2005 were available. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PERMANENT LOK ADALAT HAD JURISDICTION TO DECIDE A THEFT-OF-ELECTRICITY ASSESSMENT DISPUTE WHEN STATUTORY REMEDIES UNDER THE ELECTRICITY ACT, 2003 AND THE ELECTRICITY SUPPLY CODE, 2005 WERE AVAILABLE

The Court recorded that the matter requires consideration and granted only an interlocutory stay. ¶ 1